

**IN THE COUNTY COURT OF THE
TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
COUNTY CIVIL DIVISION**

CASE NO.: 2026-CC-1965

**COLONIAL MANOR MHC HOLDINGS, LLC,
d/b/a COLONIAL MOBILE MANOR,
Plaintiff,**

vs.

**MICHAEL JAMES MCBRIDE, MARIA VICTORIA MCBRIDE and ANY UNKNOWN PARTY(s)
IN POSSESSION (WILLIAM MAURICE PRYOR JR.),
Defendants.**

FILED FOR RECORD
2026 MAY 14 PM 2:54
CLERK OF CIRCUIT COURT
MANATEE CO FLORIDA

**DEFENDANTS' ANSWER AND AFFIRMATIVE
DEFENSES**

Defendants, MICHAEL JAMES MCBRIDE and WILLIAM MAURICE PRYOR JR., appearing *Pro Se*, hereby file this Answer and Affirmative Defenses to the Plaintiff's Complaint for Eviction, and state as follows:

ANSWER TO COMPLAINT

1. Defendants admit they reside at 900 9th Avenue East, Lot #103, Palmetto, FL 34221.
2. Defendants deny any and all allegations that they are in violation of lawful, federally compliant park rules that would warrant eviction.

**AFFIRMATIVE DEFENSE I: VIOLATION OF THE FAIR HOUSING ACT
(REASONABLE ACCOMMODATION)**

3. Defendant Michael James McBride is a disabled senior citizen whose physical condition severely limits his mobility and activities of daily living.
4. Defendant William Maurice Pryor Jr. is not an "unapproved tenant" but rather a medically

necessary "Live-In Aide" as defined by the Department of Housing and Urban Development (HUD) under 24 CFR § 5.403.

5. On December 19, 2025, Defendants submitted a formal written Request for Reasonable Accommodation to the Plaintiff's Property Manager, Cheryl Peake, formally requesting the waiver of standard occupancy rules to allow for a Live-In Aide.

6. On March 12, 2026, Verimed Health Group issued a formal medical directive explicitly stating that a Live-In Caretaker is a strict medical necessity for Mr. McBride's safety and well-being.

7. Plaintiff's attempt to evict Defendants for the presence of a medically prescribed Live-In Aide constitutes a direct violation of the Federal Fair Housing Act (42 U.S.C. § 3604(f)(3)(B)).

AFFIRMATIVE DEFENSE II: RETALIATORY EVICTION (FLA. STAT. § 723.0615)

8. Plaintiff's eviction action is retaliatory in nature. Management initiated hostile removal proceedings only after Defendants formally asserted their rights under the Fair Housing Act and documented management's attempted unlawful "self-help" eviction (Florida Statute § 83.67) that occurred on December 15, 2025.

DEMAND FOR JURY TRIAL

9. Defendants demand a trial by jury on all issues so triable.

WHEREFORE, Defendants respectfully request that this Honorable Court dismiss the Plaintiff's Complaint for Eviction with prejudice, award Defendants all recoverable costs and fees, and grant any other relief deemed just and proper.

NOTICE OF TENDER AND DEPOSIT INTO THE COURT REGISTRY

COMES NOW the Defendants, and hereby file this formal Notice of Deposit into the Court Registry pursuant to Florida Statutes § 723.068 and § 83.60.

DETAILS OF DEPOSIT

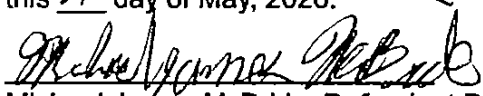
- **Date of Deposit:** May [Insert Date], 2026
- **Amount Deposited:** \$3,560.00
- **Method of Payment:** Cashier's Check / Certified Funds
- **Purpose:** To fully fund the disputed rent and secure the Defendants' right to present their Fair Housing Act defenses before this Court, effectively preventing any default judgment of eviction.

By executing this deposit, Defendants have fully satisfied the statutory requirement to maintain

standing in this action.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing Answer, Affirmative Defenses, and Notice of Deposit has been furnished via U.S. Mail and/or email to: **William C. Price, III, Esq., 522 Twelfth Street West, Bradenton, Florida 34205 (Pleadings@wcpricelaw.com)** on this 17th day of May, 2026.



Michael James McBride, Defendant Pro Se
900 9th Avenue East, Lot #103
Palmetto, FL 34221



William Maurice Pryor Jr., Defendant Pro Se
900 9th Avenue East, Lot #103
Palmetto, FL 34221